

FEDERAL SYSTEM

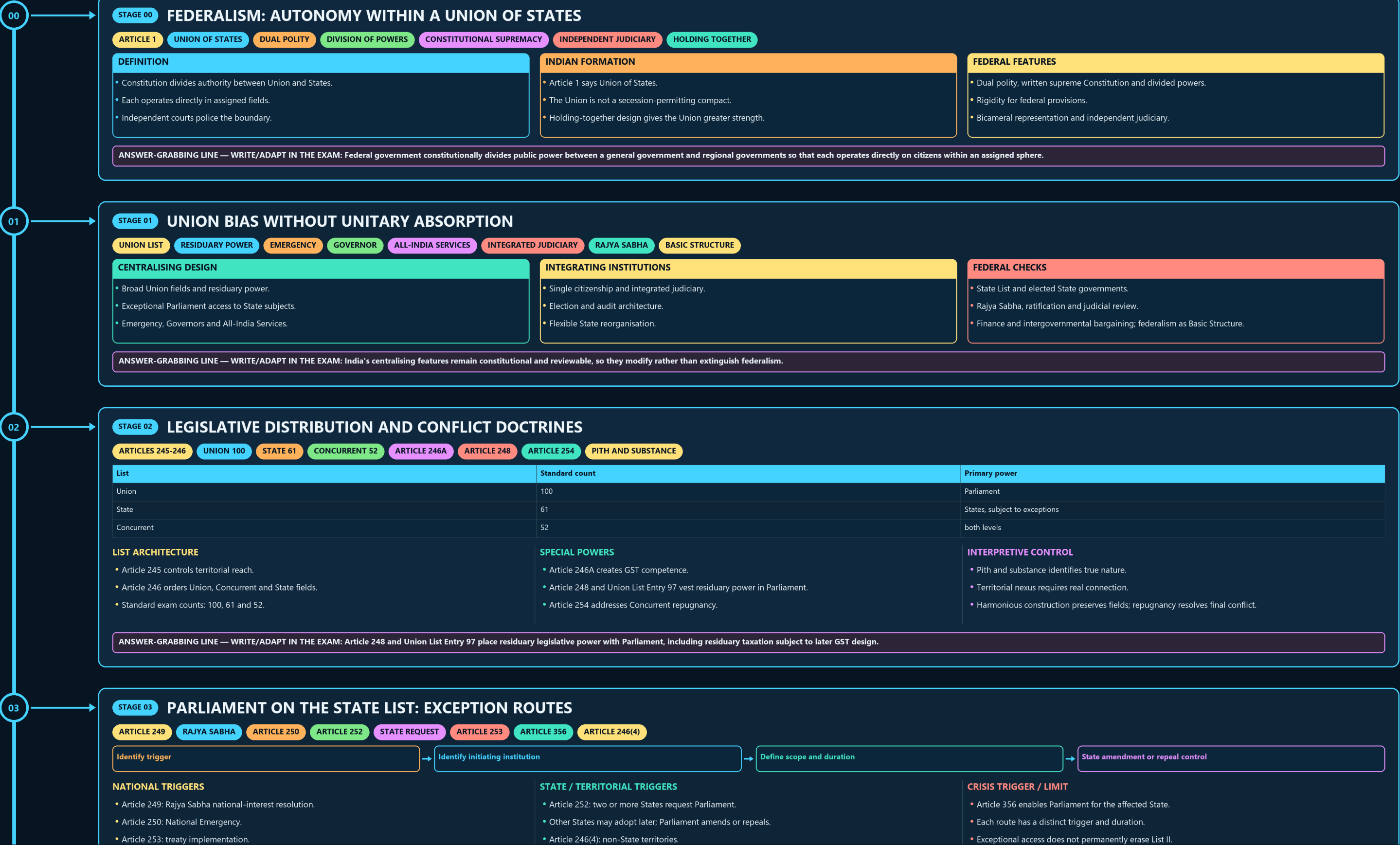
FEDERAL DEFINITION → UNION BIAS → LEGISLATIVE DISTRIBUTION → STATE-LIST EXCEPTIONS → BASIC-STRUCTURE CASES → SHARED RULE AND ASYMMETRY → FISCAL FEDERALISM → CURRENT FRICTION → ANSWER SYNTHESIS

Read the thick cyan rail from Stage 00 to the final core synthesis. The grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



Article 246 orders Union, Concurrent and State fields.

Standard exam counts: 100, 61 and 52.

Article 248 and Union List Entry 97 vest residuary power in Parliament.

Article 254 addresses Concurrent repugnancy.

Territorial nexus requires real connection.

Harmonious construction preserves fields; repugnancy resolves final conflict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 248 and Union List Entry 97 place residuary legislative power with Parliament, including residuary taxation subject to later GST design.

03

STAGE 03

PARLIAMENT ON THE STATE LIST: EXCEPTION ROUTES

ARTICLE 249

RAJYA SABHA

ARTICLE 250

ARTICLE 252

STATE REQUEST

ARTICLE 253

ARTICLE 356

ARTICLE 246(4)

Identify trigger

Identify initiating institution

Define scope and duration

State amendment or repeal control

NATIONAL TRIGGERS

Article 249: Rajya Sabha national-interest resolution.

Article 250: National Emergency.

Article 253: treaty implementation.

STATE / TERRITORIAL TRIGGERS

Article 252: two or more States request Parliament.

Other States may adopt later; Parliament amends or repeals.

Article 246(4): non-State territories.

CRISIS TRIGGER / LIMIT

Article 356 enables Parliament for the affected State.

Each route has a distinct trigger and duration.

Exceptional access does not permanently erase List II.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 253 is powerful but remains subject to constitutional rights, judicial review and the actual treaty-implementation nexus.

04

STAGE 04

FEDERALISM AS BASIC STRUCTURE AND CASE CONTROL

KESAVANANDA BHARATI (1973)

S.R. BOMMAI (1994)

FLOOR TEST

ARTICLE 356

MOHIT MINERALS (2022)

GST COUNCIL

LEGISLATIVE AUTONOMY

Kesavananda Bharati (1973) identity

S.R. Bommai (1994) Article 356 control

Mohit Minerals (2022) cooperative autonomy

IDENTITY

Kesavananda Bharati (1973) places federal character in the identity framework.

Union strength cannot erase State constitutional status.

Federalism limits constitutional amendment and power use.

ARTICLE 356

S.R. Bommai (1994) constrains partisan central intervention.

Disputed majority ordinarily goes to the floor.

Presidential action remains judicially reviewable.

GST FEDERALISM

Mohit Minerals (2022) treats GST Council recommendations as recommendatory.

Consultation and pooled sovereignty matter.

Union and State legislative autonomy remain constitutionally relevant.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The basic-structure cases transformed federalism from a descriptive feature into an enforceable limit on Union power, especially against partisan displacement of State governments.

05

STAGE 05

COOPERATION, COMPETITION, BARGAINING AND ASYMMETRY

COOPERATIVE

COMPETITIVE

BARGAINING

CONFRONTATIONAL

RAJYA SABHA

INTER-STATE COUNCIL

ASYMMETRY

LOCAL GOVERNMENT

| Mode          | Benefit          | Risk           |
|---------------|------------------|----------------|
| cooperation   | coordination     | Union leverage |
| competition   | innovation       | capacity gaps  |
| bargaining    | accommodation    | opacity        |
| confrontation | rights assertion | paralysis      |

OPERATING MODES

Cooperation coordinates interdependence.

Competition spreads innovation but may widen capacity gaps.

Bargaining accommodates interests; confrontation channels disputes.

SHARED RULE

Rajya Sabha, Inter-State Council and Zonal Councils.

GST Council, Finance Commission and courts.

All-India Services and dispute mechanisms.

ASYMMETRY / DEPTH

Special arrangements need constitutional source and purpose.

Local government deepens participation.

Local bodies are not a co-equal third sovereign tier.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The health test is whether institutions convert confrontation into reasons, negotiation, adjudication and electoral accountability.

06

STAGE 06

FISCAL FEDERALISM: CAPACITY, EQUALISATION AND GST

FINANCE COMMISSION

41 PERCENT

DIVISIBLE POOL

HORIZONTAL DEVOLUTION

GST COUNCIL

CESSES AND SURCHARGES

VERTICAL IMBALANCE

Expenditure assignments

Revenue powers

Finance Commission transfers

GST coordination

Accountability and dispute

REVENUE / EXPENDITURE GAP

States carry major service-delivery responsibilities.

Union controls important elastic revenues.

TRANSFER ARCHITECTURE

Finance Commission recommends devolution and grants.

The 2026-31 award retains 41% vertical share.

GST AND FRICTION

GST pools Union-State tax sovereignty.

Council recommendations are not binding.

FEDERAL SYSTEM • TILE 2/3 • same master rows 2406-5640 of 8045 • continues below

- Cooperation coordinates interdependence.
- Competition spreads innovation but may widen capacity gaps.
- Bargaining accommodates interests; confrontation channels disputes.

- Rajya Sabha, Inter-State Council and Zonal Councils.
- GST Council, Finance Commission and courts.
- All-India Services and dispute mechanisms.

- Special arrangements need constitutional source and purpose.
- Local government deepens participation.
- Local bodies are not a co-equal third sovereign tier.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The health test is whether institutions convert confrontation into reasons, negotiation, adjudication and electoral accountability.

06

STAGE 06FISCAL FEDERALISM: CAPACITY, EQUALISATION AND GST

FINANCE COMMISSION41 PERCENTDIVISIBLE POOLHORIZONTAL DEVOLUTIONGST COUNCILCESSES AND SURCHARGESVERTICAL IMBALANCE

Expenditure assignments→Revenue powers→Finance Commission transfers→GST coordination→Accountability and dispute

REVENUE / EXPENDITURE GAP

- States carry major service-delivery responsibilities.
- Union controls important elastic revenues.
- Transfers mediate vertical imbalance.

TRANSFER ARCHITECTURE

- Finance Commission recommends devolution and grants.
- The 2026-31 award retains 41% vertical share.
- Horizontal criteria balance equity, need and performance.

GST AND FRICTION

- GST pools Union-State tax sovereignty.
- Council recommendations are not binding.
- Cesses, scheme conditions and rate autonomy generate contestation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Transfers are therefore not charity; they are a structural feature of the constitutional division of revenue and responsibility.

07

STAGE 07REPRESENTATION, GOVERNORS, CBI AND CURRENT FRICTION

RAJYA SABHADELIMITATION131ST BILLGOVERNOR ASSENTNO DEEMED ASSENTCBI CONSENTARTICLE 131CONSULTATION

REPRESENTATION

- Rajya Sabha carries State voice with unequal representation.
- Delimitation changes popular and federal weight.
- The defeated 850-seat proposal is not law.

GOVERNOR ASSENT

- No fixed judicial timeline or deemed assent under current advisory control.
- Prolonged unexplained inaction may attract a direction to act.
- Court cannot dictate the ultimate constitutional choice.

CBI AND DISPUTE

- Section 6 consent protects police autonomy.
- Constitutional courts may order CBI investigation.
- The 2024 West Bengal ruling decided maintainability, not all merits.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Population control creates a federal fairness dilemma: equal vote value points toward updated population, while rewarding demographic performance points toward protecting relative representation of lower-growth States.

08

STAGE 08FINAL SYNTHESIS: TRAPS, PYQS AND ANSWER SPINE

UNION OF STATES100-61-52RESIDUARY POWERARTICLE 254S.R. BOMMAI (1994)SHARED RULEFISCAL FEDERALISMMAINS SPINE

PRELIMS CONTROL

- Union of States does not make States departments.
- Residuary power is parliamentary; Article 254 is Concurrent-specific.
- GST Council is recommendatory; local bodies are not co-equal sovereigns.

PYQ ROUTES

- 2020, 2021 and 2022 GS-II questions.
- 2021 and 2023 Prelims questions.
- Objective keys remain inferred where official keys are absent.

MAINS LADDER

- Define holding-together federalism.
- Map federal and centralising features.
- Explain distribution, institutions and fiscal capacity.
- Use cases and current friction; propose cooperative reform.

MECHANISM / VERDICT — Move from constitutional design to operating relations, fiscal capacity, cases, current friction and a balanced Union-capacity plus State-autonomy verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: “Not binding” does not mean irrelevant; departure can create political, administrative and market costs.

E

EXTRAOPTIONAL ENRICHMENT: FEDERAL CLASSIFICATIONS AND SCHOLARS

OPTIONAL ONLYQUASI-FEDERALBARGAINING FEDERALISMCOERCIVE FEDERALISMMARBLE CAKEASYMMETRY

ENRICHMENT

- Scholar labels describe different operating moments.
- Bargaining and marble-cake images illuminate interdependence.

USE WITH DISCIPLINE

- No label replaces constitutional provisions.
- Quasi-federal is not constitutional text.
- Add only after the complete core answer.

OPTIONAL STATUS — This enrichment is unnecessary for a competent core answer and remains subordinate to Articles, Lists, institutions, cases, fiscal facts and PYQs.